

# ENTERPRISE SOFTWARE VENDOR AGREEMENT

This Commercial Vendor Agreement is entered into between CloudScale Provider LLC ('Vendor') and Enterprise Client ('Customer').

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## 1. SCOPE OF SERVICES

Vendor provides access to proprietary cloud software on an as-is basis without performance warranties.

## 2. INDEMNIFICATION AND DEFENSE

Customer shall defend and indemnify Vendor, its directors, and agents against any and all claims, damages, lawsuits, and liabilities whatsoever arising out of or related to this Agreement, regardless of whether caused by Vendor's negligence or breach.

## 3. TOTAL DISCLAIMER OF LIABILITY

Vendor disclaims all liability whatsoever under this Agreement. Under no circumstances shall Vendor be liable for any direct, indirect, or consequential damages. User assumes all risk and agrees company has no liability whatsoever.

## 4. UNILATERAL MODIFICATION OF TERMS

Vendor reserves the right to modify, change, and revise these terms and pricing at any time without prior notice in its sole discretion. Continued use constitutes irrevocable acceptance.

## 5. TERMINATION AND EARLY CANCELLATION PENALTY

Vendor reserves the absolute right to terminate at any time without cause and immediate termination without notice. If Customer terminates prior to term completion, Customer shall pay an early termination penalty of \$25,000 as liquidated damages.

## 6. AUTOMATIC RENEWAL

This Agreement will automatically renew for consecutive two-year terms unless Customer provides written notice of at least 120 days prior to the expiration date.

## **7. RESTRICTIVE COVENANT AND NON-COMPETE**

Customer and its employees agree to a strict non-compete covenant and shall not engage in competing business, develop similar cloud software, or solicit any personnel worldwide for five (5) years.